

		Accordingly, the objections by TWDC based on overbreadth and burden are SUSTAINED. The plaintiff's motion is therefore DENIED. <i>Counsel for WDPR to give notice of this ruling.</i>
3.	Mashini v. FCA US LLC 24-1405227	Before the court is Plaintiffs Washib J. Mashini and Adriana Davizon Mashini ("Plaintiffs")' Motion for an Order Establishing Admissions. The motion is denied as MOOT. Plaintiff seeks to establish admissions in Request for Admissions (Set One) propounded to Defendant on September 16, 2024. Defendant served late responses on November 26, 2024 and verifications on February 12, 2025. This leaves the question of whether those responses are in substantial compliance with <i>Code of Civ. Proc. § 2033.220</i>, which provides: "(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) Each answer shall: (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. (2) Deny so much of the matter involved in the request as is untrue. (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge. (c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." While nearly all of Defendant's responses include objections that were waived with the failure to timely respond, each also includes a substantive response, which admits or denies the requests or indicates Defendant lacks the ability to admit or deny after reasonable inquiry. Accordingly, the responses substantially comply with <i>Code of Civ. Proc. § 2033.220</i>, and the motion is MOOT.

		However, <i>Code of Civ. Proc. § 2033.280(c)</i> indicates that sanctions are mandatory on “the party or attorney, or both, whose failure to serve a timely response to request for admission necessitated this motion.” Accordingly, sanctions are ordered against Defendant in the reduced amount of \$1, 290, due and payable through Plaintiffs’ attorney of record within 30 days of this order. <i>Plaintiffs’ counsel to give notice.</i>
4.	Yakoub v. Aguilar 24-1393709	Before the Court at present is the “Motion to Quash Defendants’ Subpoena for Plaintiff’s Out of State Records Pursuant to <i>C.C.P. §§ 1987.1 et seq.</i>, and <i>1985.3(g)</i>” filed by Plaintiff Mohab Yakoub (“Plaintiff”) on 11/8/24. As reflected in the Opposition, the Motion on the merits is now MOOT, as the subpoena at issue was promptly withdrawn after this Motion was filed. (ROA 51, Kandarian-Stein Decl. at ¶ 11, and Ex. C.) What remains at issue is the respective requests for sanctions. Both sides’ sanctions requests are DENIED. Plaintiff is correct that the subpoena at issue was improperly directed to another state, without complying with <i>C.C.P. § 2026.010</i>. The defense is thus not entitled to sanctions here, despite the conduct of Plaintiff’s counsel in addressing the issue. However, the defense has otherwise shown good cause for seeking at least a substantial portion of the records at issue. (ROA 51, Kandarian-Stein Decl. at ¶¶ 3-5 and Exs. A, B.) Instead of cooperating with the defense to provide those records reasonably requested, Plaintiff just asserted extensive objections and demanded withdrawal of the subpoena and payment of sanctions. (ROA 42, Shirazi Decl., ¶¶ 3-11, and Exs., 1-5.) As Plaintiff failed to make a reasonable effort to resolve the dispute and to cooperate in allowing reasonable discovery, Plaintiff’s sanctions request is also DENIED. <i>Counsel for Plaintiff is to give notice of this ruling.</i>
5.	Sorto v. Mihalīs 23-1350662	<i>(Off calendar- matter transferred)</i>
6.	Ricks v. Wine Cellar Designers Group, LLC 22-1274692	The motions to compel responses to Special Interrogatories, Set One, and Request for Production of Documents, Set Two, from defendant Wine Cellar Designers Group, LLC (“Defendant”) filed by Plaintiff Tyler Ricks (“Plaintiff”) are DENIED.